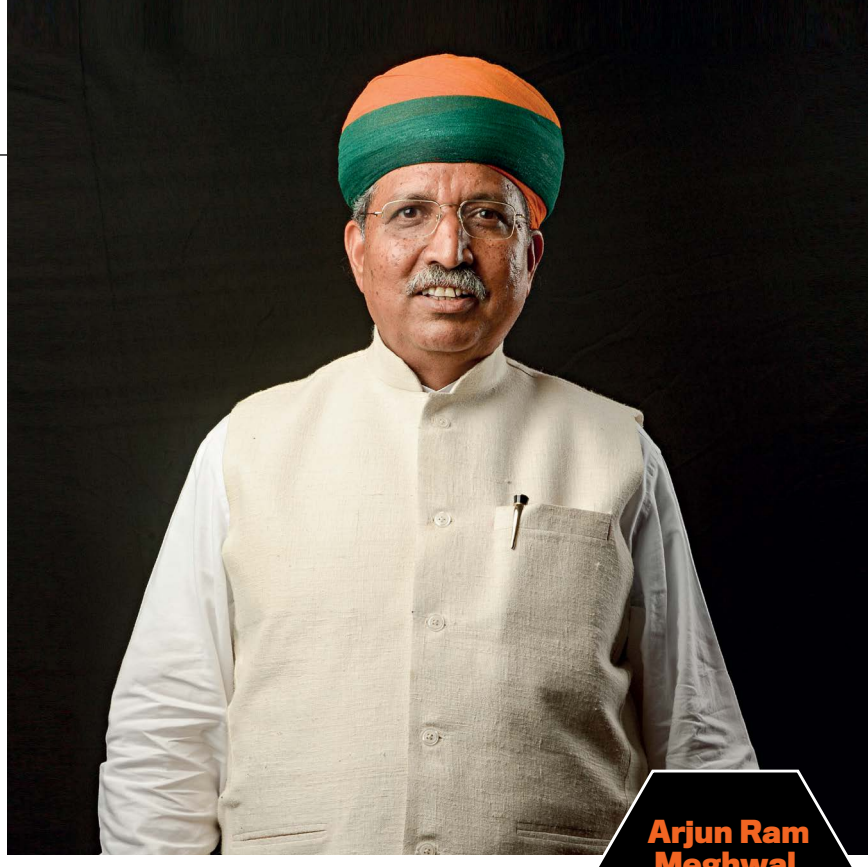


VIKRAM SHARMA

Arjun Ram Meghwal
Minister of State for Law and Justice

LAW & JUSTICE

Restoring Balance

The new minister has his work cut out—iron out differences with the judiciary, strengthen judicial infrastructure and help reduce case pendency

By Kaushik Deka

IN THE PAST COUPLE OF YEARS, under cabinet minister Kiren Rijiju, the Union ministry of law and justice remained in the news mostly because of the increasing friction between the judiciary and the executive over a host of issues—from the row over the appointment of judges to the government's charge of judicial activism and overreach. Now, a change of minister—Arjun Ram Meghwal assumed office in the middle of May—such contentious issues are expected to be resolved amiably and in accordance with the country's Constitution.

Before that, however, the Indian judiciary needs to be strengthened in terms of both manpower and infrastructure. The recently released *India Justice Report* by Tata Trusts says that the country has 19 judges per million people (when calculated against the sanctioned strength), still lagging behind the Law Commission's 1987 target of reaching 50 judges per million population in a decade. The ground reality? India has only just over 20,000 judges against a sanctioned strength of 25,628 (as of last year). In high courts, 320 of the 1,114 sanctioned posts of judges are vacant. And, consequently, the pendency of cases currently stands at 50 million.

A 2016 study by Daksh India found that delay in disposal of cases impacts 0.5 per cent of India's GDP annually. Adequate judicial infrastructure is a prerequisite for reducing such delays, according to the National Mission for Justice Delivery and Legal Reforms. But the infrastructure, particularly in lower courts, is still in an abysmal state. This, despite a three-decade-old centrally sponsored scheme, under which Rs 9,815 crore have been spent on the development of judicial infrastructure to date, of which Rs 6,371 crore (65 per cent) were pumped in since 2014. ■

